

Court No. - 36

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Hemdnra Pratap Singh, learned counsel for the petitioner, the case is directed to be put up as fresh on 5.5.2011, so as to enable him to file correct typed copy of the Recovery Certificate Annexure 1 to the writ petition.

In the meantime, Shri Rajesh Tripathi, learned counsel for the respondent no.2 will obtain instructions in the matter.

Order Date :- 8.4.2011

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Court No. - 37

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Shyam Shankar Tiwari,J.

On the request of Sri Hemendra Pratap Singh put up as a fresh case on 11th May, 2011.

Order Date :- 6.5.2011

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Court No. - 36

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Mrs. Jayashree Tiwari, J.

A Supplementary Affidavit has been filed today on behalf of the petitioner annexing thereto a typed copy of the Recovery Certificate (Annexure 1 to the Writ Petition).

It is submitted by Shri Hemendra Pratap Singh, learned counsel for the petitioner that no checking was made in the premises of the petitioner and a First Information Report dated 9th April, 2008 was lodged against the petitioner. No Provisional Assessment was ever served on the petitioner, and without complying with the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, Recovery Certificate has been sent by the respondent no.2 to the Collector, Aligarh (respondent no.3).

By the Order dated 8th April, 2011, time was granted to Shri Rajesh Tripathi, learned counsel for the respondent no.2 to obtain instructions in the matter.

Shri Raj Shekhar Srivastava, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent no.2 states that no instructions have so far been received by Shri Rajesh Tripathi.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1, 3 and 4 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent no. 2 has been accepted by Shri Rajesh Tripathi, learned counsel for the said respondent.

Therefore, no notice need be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 2nd August, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Recovery Certificate (Annexure 1 to the Writ Petition), will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 1,05,000/-with the respondent no.2.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 18.5.2011

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Court No. - 37

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

Case called out in the revise list.

No body appeared to press this writ petition.

The writ petition is dismissed for want of prosecution. Interim order, if any, stands vacated.

Order Date :- 2.8.2011

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Court No. - 37

Case :- WRIT - C No. - 20739 of 2011

Restoration Application

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

Heard the learned counsel for the parties.

Cause shown is sufficient. The order dated 2.8.2011 dismissing the writ petition for want of prosecution is recalled and the writ petition is restored to its original number. The interim order is also restored.

List in the next cause list before the appropriate Bench. It shall not be treated as tied up or part heard before this Bench.

Order Date :- 4.11.2011

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Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

Restored.

For order see our order of date passed on restoration application.

Order Date :- 4.11.2011

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Court No. - 37

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Hemendra Pratap Singh

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

Shri Rajesh Tripathi, learned counsel for the respondent prays for and is granted three weeks time to file counter affidavit. The petitioner shall have two weeks thereafter to file rejoinder affidavit.

List thereafter by the next date learned standing counsel may also file counter affidavit.

Interim order shall continue until further orders.

Order Date :- 29.11.2011

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(Hon. Ashok Pal Singh,J)

(Hon. Vineet Saran,J)

Court No. - 21

Case :- WRIT - C No. - 20739 of 2011

Petitioner :- Hakim Singh

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Hemendra Pratap Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Case called out in the revised list.

No one is present on behalf of the petitioner to press this petition.

The writ petition is dismissed for want of prosecution.

Order Date :- 21.2.2023

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(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)